COMMERCIAL GENERAL LIABILITY INSURANCE POLICY

NOTICES:

This policy is issued by National Technology Insurance Company, Inc., a captive insurance company domiciled in the State of Utah. This captive insurer is not subject to all of the insurance laws and regulations of your state. State insurance insolvency guaranty funds are not available for this captive insurer.

THIS IS AN OCCURRENCE-BASED LIABILITY COVERAGE FORM. It provides coverage for Bodily Injury, Property Damage, and Personal and Advertising Injury that occurs during the Policy Period and within the Coverage Territory. Coverage applies only to injury or damage that occurs during the Policy Period, regardless of when a Demand. Defense Costs are provided for covered Demands and are subject to all terms, conditions, exclusions, and limits of this Policy. Please read the entire Policy carefully.

In consideration of the payment of the premium, and in reliance upon the statements made in the Application, which is incorporated into and forms a part of this **Policy**, and subject to all of the terms, conditions, exclusions, and endorsements contained herein, the Insurer named in the Declarations and the **Insured** agree as follows:

This Policy is a binding legal agreement between the **Named Insured** (sometimes referred to herein as "You" or "Your") and the Insurer (sometimes referred to herein as "We," "Us," or "Our"). This Policy is issued in accordance with the terms stated below.

SECTION I: INSURING AGREEMENTS

1. **Coverage A – Bodily Injury and Property Damage Liability**

We agree to pay **Loss** and **Defense Costs** an **Insured** must legally pay as a result of a **Demand** for **Bodily Injury** or **Property Damage**, provided that the **Bodily Injury** or **Property Damage** is caused by an **Occurrence** during the **Policy Period** and within the **Coverage Territory**.

2. **Coverage B – Personal and Advertising Injury Liability**

We agree to pay **Loss and Defense Costs** an **Insured** must legally pay as a result of a **Demand** for **Personal and Advertising Injury,** provided that the **Personal and Advertising Injury** is caused by an **Occurrence** during the **Policy Period** and within the **Coverage Territory**.

3. **Coverage C – Medical Expenses**

We agree to pay **Medical Expenses** because of **Bodily Injury** caused by an **Occurrence** on premises you own or rent or arising from your operations, provided the **Occurrence** is within the **Coverage Territory** during the **Policy Period** and **Medical Expenses** are incurred and reported within one year. The injured person must submit to examinations we reasonably request, at our expense.

SECTION II: DEFINITIONS

For purposes of this Policy, the following terms have the meanings set forth below. Any word shown in **bold** in this Policy is a defined term.

1. **Advertisement** means a written or oral publication about your goods, products, or services that is published or broadcast to the public or a target market for the purpose of attracting customers or supporters. Material appearing on the Internet or similar electronic media qualifies. Only those portions of a website devoted to such promotion are an **Advertisement**.

   B. **Application** means all applications, including attachments and submitted materials, for this **Policy** or for any policy of which this **Policy** is a renewal or replacement. All such application, attachments and materials are deemed attached to and incorporated into this **Policy** even if not physically attached**.**

3. **Auto** means a land motor vehicle, trailer, or semitrailer designed for travel on public roads, including any attached machinery or equipment, and any other land vehicle that is subject to a compulsory financial responsibility or motor vehicle insurance law in the place where it is licensed or principally garaged. **Auto** does not include **Worksite Equipment**.

4. **Bodily Injury** means physical harm, sickness, or disease sustained by a person, and includes death resulting from any alleged act, error, omission, or mistake by an **Insured**. **Bodily Injury** does not include emotional distress, loss of services, or loss of consortium.
5. **Demand** means:

    1. a written notice received by an **Insured** alleging that a person or entity has been damaged by an **Insured** and: (i) demanding monetary damages; or (ii) notifying the **Insured** of an intention to hold an **Insured** responsible for an **Occurrence**; or

    2. the filing of a civil lawsuit or arbitration proceeding against an **Insured**.

6. **Coverage Territory** means:

    1. the United States of America (including its territories and possessions), Puerto Rico, and Canada;

    2. international waters or airspace, but only if the **Bodily Injury** or **Property Damage** occurs in the course of travel or transportation between any places included in 1. above;

    3. all other parts of the world, if the **Bodily Injury** or **Property Damage** arises out of goods or products made or sold by you in the territory described in 1. above, or arises out of the activities of an **Insured** person whose home is in the territory described in 1. above but is away for a short time on your business, or arises out of **Personal and Advertising Injury** offenses that take place through the Internet or similar electronic means of communication; provided that the **Insured's** responsibility to pay **Loss** is determined in a civil action on the merits in the territory described in 1. above, or in a settlement to which we have agreed.

7. **Change in Control** means:

    1. the merger, consolidation, or combination of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity;

    2. the acquisition by any person or entity of more than 50% of the outstanding securities, voting securities, or equity interest of the **Named Insured**; or

3. the sale, transfer, lease, or other disposition of all or substantially all of the assets of the Named Insured.

8. **Defense Costs** means reasonable and necessary legal fees and expenses incurred in the investigation and defense of a **Demand**. **Defense Costs** do not include the salaries, overhead, or other internal costs of the **Insured**.
9. **Employee** means a natural person whose labor or service is, was, or will be directed by the **Named Insured**, including full-time workers, part-time workers, leased workers, and volunteer workers.

10. **Impaired Property** means tangible property, other than **Your Product** or **Your Work**, that cannot be used or is less useful because:

    1. it incorporates **Your Product** or **Your Work** that is known or thought to be defective, deficient, inadequate or dangerous; or

    2. you have failed to fulfill the terms of a contract or agreement; if such property can be restored to use by the repair, replacement, adjustment, or removal of **Your Product** or **Your Work** or the work or product of any **Insured**.

11. **Insured** means:

    1. the **Named Insured**;

    2. an **Employee,** but solely when acting within the scope of his or her employment.

12. **Interrelated Occurrences** means all **Occurrences** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of related facts, circumstances, situations, events, transactions, or causes. **Occurrences** may be **Interrelated Occurrences** whether or not they involve the same **Demand(s)**, damages, patient(s), Claimant(s), **Insured(s)**, or legal theory(ies).
13. **Limit of Liability** means the applicable amounts identified in Item – of the Declarations.
14. **Loss** means compensatory monetary amounts (including judgments, awards and settlements) that an **Insured** is legally obligated to pay as compensation for a covered loss. **Loss** does not include fines, punitive or exemplary damages, multiplied portions of any multiple damages, penalties, taxes, or matters deemed uninsurable by law, nor do they include **Defense Costs**.

15. **Medical Payments** mean first aid at the time of the accident; necessary medical, surgical, X-ray, and dental services, including prosthetics; necessary ambulance, hospital, and professional nursing services; and funeral services.
16. **Named Insured** means the person(s) or organization(s) designated in the Declarations as such.
17. **Worksite Equipment** means a land vehicle, including any attached machinery or equipment that:

    1. is designed for off-road use, such as tracked or industrial vehicles, or it is maintained for use only on premises you own or rent or on ways next to those premises;

    2. is maintained mainly to provide mobility to permanently mounted equipment or to perform a specialized task other than transporting persons or cargo; or

    3. is otherwise a vehicle not intended for regular travel on public roads.

    The following are **Autos** and not **Worksite Equipment**:

    a. any land vehicle designed for or used in travel on public roads;
    b. any self-propelled platform or device mounted on, integrated with, or operated from an automobile or truck chassis or
    c. any autonomous or remotely operated ground device when operated on public roads or under a motor vehicle licensing or permitting scheme.

    In all events, a land vehicle subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the jurisdiction where it is licensed or principally garaged will be treated as an **Auto**.

18. **Occurrence** means an accident, including continuous or repeated exposure to substantially the same general conditions.
19. **Personal and Advertising Injury** means injury, including consequential **Bodily Injury**, arising out of one or more of the following offenses:

    1. false arrest, detention, or imprisonment;

    2. malicious prosecution or wrongful eviction;

    3. wrongful entry, or invasion of the right of private occupancy of premises a person occupies, when committed by or for the owner, landlord, or lessor;

4. publication, in any manner, of material that slanders or libels a person or organization, or that disparages their goods, products, or services; or

5. publication, in any manner, of material that violates a person's right of privacy, use of another's advertising idea in your **Advertisement**, or the infringement of copyright, trade dress, or slogan in your **Advertisement**.

20. **Policy Period** means the time period identified in the Declarations.
21. **Pollutants** means any solid, liquid, gaseous, or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, and waste.
22. **Products-Completed Operations Hazard** includes all **Bodily Injury** and **Property Damage** occurring away from premises you own or rent and arising out of **Your Product** or **Your Work**, except:

    1. products that are still in your physical possession; or

    2. work that has not yet been completed or abandoned. **Your Work** will be deemed completed at the earliest of:

        a. when all of the work called for in your contract has been completed;

        b. when all of the work to be done at a job site has been completed if your contract calls for work at more than one site; or

        c. when that part of the work at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project. Work that is otherwise complete will be treated as completed even if it requires service, maintenance, correction, repair, or replacement; and

    3. **Bodily Injury** or **Property Damage** arising out of the transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you and that condition was created by the loading or unloading of that vehicle by an **Insured**.

23. **Property Damage** means:

    1. physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or

2. loss of use of tangible property that is not physically injured. For the purposes of this insurance, electronic data, which includes but is not limited to facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media used with electronically controlled equipment, is not tangible property All such loss of use shall be deemed to occur at the time of the **Occurrence** that caused it.

X. **Retention** means the amount, if any, stated in the Declarations, which shall apply to both **Loss** and **Defense Costs**.

25. **Your Product** means:

Any goods or products, other than real property, manufactured, sold, handled, distributed, or disposed of by:

1. an **Insured**; and
2. containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products. **Your Product** includes warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **Your Product**, and the providing of or failure to provide warnings or instructions in connection with it. **Your Product** does not include vending machines or other property rented to or located for the use of others but not sold.

26. **Your Work** means:

1. work or operations performed by you or on your behalf; and
2. materials, parts or equipment furnished in connection with such work or operations. **Your Work** includes warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **Your Work**, and the providing of or failure to provide warnings or instructions in connection with it.

SECTION III: LIMITATIONS OF LIABILITY AND RETENTIONS

1. **Limits of Liability**
   1. **Policy Aggregate Limit of Liability**: The Policy Aggregate stated in the Declarations is the maximum amount we will pay under this Policy for all **Loss**, **Defense Costs**, and **Medical Payments**. In no event will we pay more than the Policy Aggregate. **Interrelated Occurrences** shall be deemed to constitute one single **Occurrence** for the purposes of determining the applicable limits of liability

of this Policy and shall be deemed to have first occurred at the earliest point any such portion of an **Interrelated Occurrence** has occurred.

2. If the limits of liability for any Coverage Section are exhausted by payment of **Loss**, judgments, settlements, **Defense Costs** or **Medical Payments**, our obligations under this Policy shall be deemed completely fulfilled and extinguished.
3. The amount listed as the Per **Occurrence** Limit of Liability for Insuring Agreement A, Insuring Agreement B, and Insuring Agreement C of the Declarations is the maximum aggregate amount of **Loss**, **Defense Costs**, and **Medical Payments**, we will pay under the Policy for each **Occurrence** under Insuring Agreement A, Insuring Agreement B, or Insuring Agreement C, and is further reduced by the amount of any applicable **Retention**.
4. Our liability under the Coverage Section with respect to all **Defense Costs, Loss,** and **Medical Payments** arising from any single **Occurrence** shall apply only in excess of the **Retention** set forth in the Declarations for the Coverage Section. The **Retention** amount shall be your uninsured responsibility**.**
5. **Products-Completed Operations Aggregate Limit:** The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage A for **Loss** and **Defense Costs** because of **Bodily Injury** or **Property Damage** included within the **Products-Completed Operations Hazard**.
6. **Damage to Premises Rented To You Limit:** Subject to 2. above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage A for **Loss** because of **Property Damage** to any one premises while rented to you, or (in the case of damage by fire) while rented to you or temporarily occupied by you with the owner's permission.
7. **Defense Costs Erosion: Defense Costs** are part of, and operate to reduce or erode, the applicable **Limit of Liability**, unless otherwise noted by Endorsement to this Policy.

The **Limit of Liability** of this Policy apply separately to each consecutive annual period and to any remaining period of less than 12 months in the **Policy Period**, unless the **Policy Period** is extended after issuance for an additional period less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of applying the **Limit of Liability**.

2. **Retention**

The **Retention** is the amount shown in the Declarations and is the amount that shall apply to each and every **Occurrence** during the **Policy Period**. Our liability to pay any **Loss** and **Defense Costs** under this Policy applies only to that part of **Loss** and **Defense Cost**s which is in excess of the **Retention** amount stated in the Declarations. The **Retention** shall be borne by you and shall remain uninsured. You are responsible for payment of the **Retention** for each **Demand**. If a single **Occurrence** or offense results in **Demands** that trigger more than one coverage (Coverage A, B, or C) under this Policy, only one **Retention** (the highest applicable **Retention**) shall apply to all **Loss**

arising from that **Occurrenc**e or offense. In no event will we be obligated to pay any amounts (including **Defense Costs** or **Loss**) until the **Retention** has been satisfied by payments made by you. Payment of the **Retention** does not reduce the **Limits of Liability** available under this Policy. If any covered **Loss** within the **Retention** is paid on behalf of an **Insured** by a source other than you, such payment will reduce the **Retention** to the extent of that payment. However, payments made by us or on our behalf do not satisfy or reduce the **Retention**. If we advance any amounts that are within the **Retention** (with no obligation to do so), you agree to reimburse us for such amounts as soon as practicable. In the event you resolve any **Demand** for an amount within the applicable **Retention**, our consent to the settlement is not required, but you must promptly notify us of the settlement and its terms.

SECTION IV: EXCLUSIONS

We shall not be liable to pay any **Loss**, or to defend or continue to defend any **Demand**, in connection with any matter described below, regardless of whether any other cause or event contributes concurrently or in any sequence to such matter.

1. **Exclusions Applicable to All Coverages (Coverage A, B, and C):**

   We shall not be liable to pay any **Loss**, **Defense Costs**, or **Medical Payments** on account of any **Occurrence**:

   1. **Prior Notice**: Based on, arising out of, or in any way involving, in whole or in part, an **Occurrence** that any **Insured**, or any employee authorized to give or receive notice for the **Named Insured**, knew had occurred, in whole or in part, before the **Policy Period**. An **Occurrence** will be treated as known when:

      a. the **Insured** gives notice to us or any insurer regarding the injury or damage,

      b. the **Insured** receives a demand or **Demand** because of it, or

      c. the **Insured** otherwise becomes aware that injury or damage has taken place.

   2. **Prior Conduct:** Based upon, arising out of, or in any way involving, in whole or in part, any conduct, act, error or omission by any **Insured** to the extent the conduct, act, error or omission occurred:

   1. before the earlier of: (i) when such **Insured** became an **Insured**, or (ii) the Retroactive Date applicable to such **Insured**; or
   2. after such **Insured** ceased to be an **Insured**.
3. **Electronic Data:** Based on, arising out of, or in any way involving, in whole or in part, loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.
4. **Asbestos and Lead:** Based on, arising out of, or in any way involving, in whole or in part, actual or alleged inhalation of, ingestion of, contact with, exposure to, existence of, or presence of asbestos or lead in any form, or any obligation of the **Insured** to indemnify any party because of such claims, or to share damages with or repay someone else who must pay damages related to such matters.
5. **Workers' Compensation:** Based on, arising out of, or in any way involving, in whole or in part, any obligation of the **Insured** under a workers' compensation, disability benefits, unemployment compensation, or similar law.
6. **Employer's Liability:** Based on, arising out of, or in any way involving, in whole or in part, **Bodily Injury** or **Property Damage** to:
   1. an **Employee** of the **Insured** arising out of and in the course of employment by the **Insured**, or performing duties related to the conduct of the **Insured's** business; or
   2. the spouse, child, parent, brother or sister of that **Employee** as a consequence of the injury in (a) above.

   This exclusion applies whether the **Insured** may be liable as an employer or in any other capacity, and whether the liability is direct or vicarious.

7. **Professional Services:** Based on, arising out of, or in any way involving, in whole or in part, the rendering of or failure to render professional services by the **Insured**, including but not limited to any health care, legal, accounting, architectural, engineering, consulting, or insurance services, or any advice, instruction, design, or plan provided as part of such services.
8. **Contractual Liability**: Based on, arising out of, or in any way involving, in whole or in part, liability for which the **Insured** is obligated to pay by reason of the assumption of liability in a written contract or agreement. This exclusion does not apply to liability for **Loss** that the **Insured** would have in the absence of the contract or agreement.
9. **Employment-Related Practices:** Based on, arising out of, or in any way involving, in whole or in part:
   1. any employment-related practice, policy, act or omission (such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination, termination, or malicious prosecution, or inappropriate employment hiring or promotion decisions); or
   2. the spouse, child, parent, brother, sister or other relative of that person as a consequence of injury to the person at whom any of the employment-related practices described above is directed. This exclusion

applies whether the **Insured** may be held liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

10. **Fraud and Intentional Acts:** Based on, arising out of, or in any way involving, in whole or in part, any fraudulent, dishonest, criminal or malicious act, error or omission, or willful violation of law by an **Insured**. However, this exclusion shall only apply following a final adjudication or admission that such **Insured** committed, participated in, or had knowledge of such conduct.
11. **Medicare/Medicaid:** Based on, arising out of, or in any way involving, in whole or in part, any actual or alleged fraud, abuse, or non-compliance with Medicare/Medicaid regulations.
12. **Illegal Profit:** Based on, arising out of, or in any way involving, in whole or in part, any **Insured** gaining profit, remuneration or financial advantage to which such party was not legally entitled.
13. **Business Dispute:** Based on, arising out of, or in any way involving, in whole or in part, any business dispute, including but not limited to any: interference with business relations; interference with contract; breach of contract; interference with business relations; interference with contract; breach of contract; interference with prospective business advantage; unfair competition; unlawful, unfair, or fraudulent business practices; unfair, deceptive, untrue, or misleading advertising; misappropriation of trade secrets; or other unfair trade practice or business practice.
14. **Cyber Liability:** Based on, arising out of, or in any way involving, in whole or in part, any cyber liability, including but not limited to any: network security breach, hacker attack, computer virus, theft of electronic data, denial of service attack, theft or loss of personally identifiable non-public data, failure/malfunction/inadequacy of any electronic data processing equipment or media, or data extortion costs.
15. **Record Amendments:** Based on, arising out of, or in any way involving, in whole or in part, any records that have been amended, appended, deleted, corrected, falsified, edited, altered, or modified not in accordance with generally accepted standards by any **Insured**, at any **Insured's** direction, or by any person for whose acts or omissions any **Insured** is legally responsible.
16. **Discrimination:** Based on, arising out of, or in any way involving, in whole or in part, any actual or alleged discrimination of any kind, including but not limited to allegations of harassment, civil rights violations or any other discrimination based on race, color, creed, age, gender, sexual preference or orientation, national origin, physical handicap, HIV and AIDS status, disability, or marital status.
17. **Weapons**: Based on, arising out of, or in any way involving, in whole or in part the ownership, manufacture, import, export, sale, distribution, transfer, gift, loan, licensing, entrustment, maintenance, repair, assembly, testing, display, storage, transportation, or disposal of any firearm, ammunition, explosive, or weapon, including any parts, components, attachments, or accessories.

18. **Nuclear Liability:** Based on, arising out of, or in any way involving, in whole or in part, any loss, injury, damage or legal obligation arising out of the hazardous properties of nuclear material, including but not limited to nuclear reaction, radiation, or radioactive contamination, at any time.
19. **Liquor Liability:** Based on, arising out of, or in any way involving, in whole or in part, an **Insured's** liability by reason of:
    1. causing or contributing to the intoxication of any person;
    2. furnishing alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
    3. any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

    This exclusion applies even if the **Demand** alleges negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by an **Insured**, or providing or failing to provide transportation to any person under the influence of alcohol. However, this exclusion applies only if the **Insured** is in the business of manufacturing, distributing, selling, serving, or furnishing alcoholic beverages.

20. **War:** Based on, arising out of, or in any way involving, in whole or in part, war, civil war, revolution, insurrection, rebellion, or any warlike action by a military force or other agent (including action in hindering or defending against any of these).
21. **Pollution:** based on, arising out of, or in any way involving, in whole or in part, the actual, alleged, or threatened discharge, dispersal, seepage, migration, release, or escape of **Pollutants**, regardless of whether such was accidental or intentional**.**
22. **Recording and Distribution of Material or Information in Violation of Law: Bodily Injury** or **Property Damage** based on, arising out of, or in any way involving, in whole or in part, any action or omission that violates or is alleged to violate:
    1. the Telephone Consumer Protection Act (TCPA), including any amendment or addition to such law;
    2. the CAN-SPAM Act of 2003 (Controlling the Assault of Non-Solicited Pornography and Marketing), including any amendment or addition to such law;
    3. the Fair Credit Reporting Act (FCRA) and any Fair and Accurate Credit Transactions Act (FACTA) amendment, including any amendment or addition to such law; or
    4. any federal, state or local statute, ordinance or regulation (other than the U.S. antitrust laws and federal securities laws, which are addressed elsewhere if applicable) that addresses, prohibits or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

2. **Exclusions Applicable to Coverage A** and **Coverage C:**

We shall not be liable to pay any **Loss**, **Defense Costs**, or **Medical Payments** on account of any **Occurrence**:

1. **Expected or Intended Injury:** Based on, arising out of, or in any way involving, in whole or in part, **Bodily Injury** or **Property Damage** expected or intended from the standpoint of any **Insured**. However, this exclusion does not apply to **Bodily Injury** resulting from the use of reasonable force to protect persons or property.
2. **Aircraft, Auto or Watercraft: Bodily Injury** or **Property Damage** based on, arising out of, or in any way involving, in whole or in part, the ownership, maintenance, operation, use, loading or unloading or entrustment to others of any aircraft, **Auto** or watercraft by any **Insured** or on any **Insured's** behalf. This exclusion applies even if the **Demands** against any **Insured** allege negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by that **Insured**.

   This exclusion does not apply to**:**

   1. a watercraft while ashore on premises you own or rent;
   2. a watercraft you do not own that is less than 26 feet long and not being used to carry persons or property for a charge;
   3. parking of an **Auto** on or next to premises you own or rent, provided the **Auto** is not owned by or rented or loaned to you or the driver (this exception applies only to liability caused by the parking of the **Auto**, and not to physical damage to the **Auto** itself); or
   4. **Bodily Injury** or **Property Damage** arising out of the operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of **Worksite Equipment** if it were not subject to compulsory motor vehicle insurance laws. For the purposes of this exclusion, **Aircraft** includes any **Unmanned Aircraft**, drone, remotely piloted aircraft system, or similar device, including any equipment, payload, or component attached thereto.
3. **Worksite Equipment: Bodily Injury** or **Property Damage** based on, arising out of, or in any way involving, in whole or in part,
   1. the transportation of **Worksite Equipment** by an **Auto** owned or operated by or rented or loaned to any **Insured**; or
   2. the use of **Worksite Equipment** in, or while in practice or preparation for, any prearranged racing, speed, demolition, or stunting activity.
4. **Damage to Property:** Based on, arising out of, or in any way involving, in whole or in part, **Property Damage** to:
   1. property you own, rent, or occupy;

2. premises you sell, give away or abandon, if the **Property Damage** arises out of any part of those premises;
3. property loaned to you;
4. personal property in the care, custody or control of any **Insured;**
5. that particular part of real property on which you or any contractors or subcontractors working on your behalf are performing operations, if the **Property Damage** arises out of those operations; or
6. that particular part of any property that must be restored, repaired or replaced because **Your Work** was incorrectly performed on it.

   However, this exclusion does not apply to: (i) **Property Damage** (other than by fire) to premises, including the contents of such premises, rented to you for a period of seven (7) or fewer consecutive days or (ii) **Property Damage** to premises you have sold, given away or abandoned, if the premises are **Your Work** and were never occupied, rented or held for rental by you.

5. **Damage to Your Product: Property Damage** to **Your Product** based on, arising out of, or in any way involving, in whole or in part, **Your Product** itself, or any part of it.
6. **Damage to Your Work:** based on, arising out of, or in any way involving, in whole or in part, **Property Damage** to **Your Work**.. This exclusion does not apply if the damaged work, or the work out of which the damage arises, was performed on your behalf by a subcontractor.
7. **Damage to Impaired Property or Property Not Physically Injured:** based on, arising out of, or in any way involving, in whole or in part, **Property Damage** to **Impaired Property** or property that has not been physically injured, arising out of:
   1. a defect, deficiency, inadequacy or dangerous condition in **Your Product** or **Your Work**; or
   2. a delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms**.**
8. **Recall of Products, Work or Impaired Property:** based on, arising out of, or in any way involving, in whole or in part, the withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:
   1. **Your Product**;
   2. **Your Work**; or
   3. **Impaired Property**; if such product, work or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.
9. **Personal and Advertising Injury: Bodily Injury** or **Property Damage** based on, arising out of, or in any way involving, in whole or in part, **Personal and Advertising Injury**.

3. **Exclusions Applicable to Coverage B – Personal and Advertising Injury Liability:**

We shall not be liable to pay any **Loss** or **Defense Costs** on account of any **Demand**:

1. **Material Published With Knowledge of Falsity: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, an oral or written publication, in any manner, of material by or at the direction of the **Insured**, if done with knowledge of its falsity.
2. **Material Published Prior to Policy Period: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, an oral or written publication, in any manner, of material whose first publication took place before the beginning of the **Policy Period**.
3. **Quality or Performance of Goods – Failure to Conform to Statements: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, the failure of goods, products or services to conform with any statement of quality or performance made in your **Advertisement**.
4. **Wrong Description of Prices: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, the wrong description of the price of goods, products or services stated in your **Advertisement**.
5. **Infringement of Intellectual Property: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, any actual or alleged infringement or violation of copyright, patent, trademark, trade secret, trade dress, service mark, or other intellectual property rights. However, this exclusion does not apply to infringement of copyright, trade dress or slogan in your **Advertisemen**t, to the extent that such act otherwise falls within the **Personal and Advertising Injury** offenses covered by this Policy.
6. **Insureds in Media and Internet Type Businesses:** Based on, arising out of, or in any way involving, in whole or in part, **Personal and Advertising Injury** committed by an **Insured** whose business is advertising, broadcasting, publishing or telecasting, or whose business involves designing or determining content of websites for others, or providing Internet search, access, content or service. This exclusion applies to **Personal and Advertising Injury** arising out of the **Insured's** rendering of or failure to render specialized media and internet services in the course of that business.
7. **Electronic Chatrooms or Bulletin Boards: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, an electronic chatroom or bulletin board that the **Insured** hosts, owns, or exercises control over.
8. **Unauthorized Use of Another's Name or Product: Personal and Advertising Injury** based on, arising out of, or in any way involving, in whole or in part, the unauthorized use of another's name or product in an e-mail address, domain name, metatag, keyword or other similar tactics aimed at misleading another's potential customers.

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4. **Exclusions Applicable to Coverage C – Medical Expenses Liability:**

   We shall not be liable to pay any **Medical Payment** on account of:

   1. **Employee Injury**: We are not obligated to pay **Medical Payments** to any **Insured**, to any person hired by any **Insured**, by any **Insured's** tenant, or to a person injured on that part of premises the person normally occupies.

SECTION V: DEFENSE AND SETTLEMENT

A. We have the right and duty to defend any **Demand** covered by the Policy and such obligation is limited to the payment of amounts constituting **Defense Costs.** We will appoint an attorney to defend any covered **Demand.** We have the right, but not the duty or obligation, to investigate any **Occurrence** and the costs of any such investigation will be deemed **Defense Costs,** even if incurred prior to the existence of a **Demand.**

B. The **Insureds** will not incur any **Defense Costs,** retain defense counsel, settle, or offer to settle any **Demand,** assume any contractual obligation, admit liability, voluntarily make any payment or confess or otherwise consent to any damages or judgments with respect to any **Demand** without our prior written consent. We will not be liable for any **Defense Costs,** settlement, assumed obligation, admitted liability, voluntary payment, confessed damages, or judgments to which we have not consented in writing.

C. Our obligations under the Policy, including but not limited to our duty to defend any **Demand** will end once the applicable **Limit of Liability** is exhausted by the payment of covered **Loss, Defense Costs,** and **Medical Payments.** Our duty and obligation to defend any **Demand** also will end when and if, solely at our option, we tender to an **Insured,** to any plaintiff or plaintiffs, or into any court of competent jurisdiction, the applicable **Limit of Liability** under the Policy. Such tender will not only end our duty to defend, but will constitute full satisfaction of all of our duties and obligations under the Policy with respect to that **Demand.** If our duty to defend ends with respect to any **Demand,** we will notify the **Named Insured** so that the **Named Insured** can arrange to take control of the defense of the **Insureds.** We will take whatever reasonable steps are necessary to avoid a default judgment during a transfer of control of the defense of any such **Demand.** If we do so, the **Named Insured** agrees to repay the reasonable fees, costs, and expenses incurred by us in excess of the applicable **Limit of Liability** during the transfer and further agrees that, in undertaking the steps necessary to avoid a default judgment during the transfer, we have not waived any rights under this Policy.

D. The **Insureds** will provide full cooperation and all information and particulars that we may request to conduct an investigation, defend a **Demand**, or reach a settlement of the **Demand**. The **Insureds** agree that, in the event of an **Occurrence** or a **Demand**, they will do nothing that may increase our liability, compromise any defenses, or prejudice our position or rights of recovery.

E. We may settle any **Demand** for any monetary amount within the available **Limit of Liability** that we consider reasonable, without the consent of an **Insured.**

SECTION VI: NOTICES AND CONDITIONS

1. **Change in Control**: The **Named Insured** must provide us with written notice as soon as practicable, but no later than thirty (30) days after any **Change in Control**. Such notice must include the date and nature of the transaction and any information we reasonably request for underwriting and evaluation. Upon a **Change in Control**, coverage under this Policy for **Bodily Injury**, **Property Damage**, or **Personal and Advertising Injury** that occurs or is committed on or after the effective date of the **Change in Control** will continue only with our prior written consent, which may be conditioned upon additional premium, revised limits, retentions, exclusions, or other terms we require. Absent our written consent, this Policy applies only to **Occurrences** or offenses that take place before the effective date of the **Change in Control**.
2. **Bankruptcy:** Bankruptcy or insolvency of any **Insured** shall not relieve us of our obligations under this Policy, provided the **Insured** shall provide any reasonable assistance and cooperation necessary to lift any automatic stay or injunction that may apply to the payment of any proceeds of this Policy
3. **Notices Provision**: Once a **Demand** is made against an **Insured**, it is an express condition precedent to any of your rights under this Policy that you give us immediate written notice thereof and provide us with copies of all documentation comprising the **Demand** as well as all authorizations, cooperation and assistance we may thereafter request. In no event may written notice to us be made more than 30 calendar days after actual or constructive receipt of a **Demand** by the **Insured**. Strict adherence to this paragraph is an express condition precedent to any of your rights under this Policy, and it shall be presumed that we are materially prejudiced by any deviation from your obligations under this paragraph.

   Any notices to us under this Policy must be emailed to legal@corgi.insure.

   Notices to the **Insured(s)** are deemed effective if sent by email to the Primary Insured at the address listed in the Declarations.

4. **Cooperation:**
   1. As a condition precedent to coverage, each **Insured** must cooperate with us in the investigation, defense and settlement of any **Demand** and in enforcing any

right of contribution or indemnity against any person or entity who may be liable to an **Insured** for the loss. Any failure of any **Insured** to cooperate that prejudices our ability to investigate or defend any **Demand** shall nullify coverage for such **Demand**.

2. Upon an **Occurrence**, or receipt of a **Demand**, for which coverage is sought under this Policy, as an express condition precedent to coverage under this Policy, no **Insured** shall, without our prior written consent, communicate orally or in writing with the claimant or the claimant's representative or attorney concerning the circumstances of the **Demand** or **Occurrence**. If such communication is mandated by law, we shall be notified in advance of any such communication in writing, and we shall not unreasonably withhold written consent to such communication. Any **Insured's** violation of this provision, even without prejudice to us, shall act as a forfeiture of any coverage that may have otherwise existed for such **Demand** or **Occurrence**.

5. **Interrelated Occurrences**: **Interrelated Occurrences** shall be deemed to constitute one **Occurrence**, and shall be deemed to have first occurred on the date of the earliest **Occurrence** comprising **Interrelated Occurrences**, regardless of whether such date is before or during the **Policy Period**. All **Demands** based upon or arising out of the same **Occurrence** or **Interrelated Occurrences** shall be considered a single **Demand**.
6. **Other Insurance:** If other valid and collectible insurance is available to the **Insured** for a **Loss** we cover under Coverages A, B, or C of this Policy (whether such insurance is stated to be primary, contributing, excess or contingent), our obligations are limited as follows:
    1. **Primary Insurance:** This insurance is primary, except when paragraph b. below applies. If this insurance is primary, and the **Insured** has other insurance which is also primary, we will share with that other insurance as described in c. below.
    2. **Excess Insurance:** This insurance shall be excess over (i) any Fire, Extended Coverage, Builder's Risk, Installation Floater or similar property insurance covering the **Insured's** work or property; (ii) any fire, lightning or explosion insurance covering premises rented to the **Insured** or temporarily occupied by the **Insured**; (iii) any insurance purchased by the **Insured** to cover its liability as a tenant for **Property Damage** to premises rented or temporarily occupied by the **Insured**; (iv) any other primary insurance available to the **Insured** covering liability for damages arising out of premises or operations for which the **Insured** has been added as an additional insured on another policy; and (v) any valid and collectible primary insurance covering liability arising out of the maintenance or use of aircraft, **Autos** or watercraft, to the extent not subject to the Aircraft/Auto/Watercraft exclusion under Coverage A of this Policy. When this insurance is excess, we will have no duty to defend the **Insured** against any **Demand** if any other insurer has a duty to defend the **Insured** against that **Demand**. This Policy is not intended to share in a defense or otherwise allocate exposure where another policy is providing coverage to the **Insured** for a **Demand**.

7. **Premium Audit:** If this Policy is subject to audit (as indicated in the Declarations or by endorsement), the premium for Policy(s) shown as auditable is a deposit premium only. We will compute the final premium for each audit period based on our rules and rates and the actual exposures (such as sales or payroll) that occurred during that period. If the earned premium is more than the deposit premium paid, the **Named Insured** will be responsible for the difference (subject to any minimum premium); if less, we will return the difference to the **Named Insured**. The **Named Insured** must keep records of the information we need for premium calculation and send us copies of such records upon request.
8. **Representations By Insured:** By accepting this Policy, the **Named Insured** agrees that: (a) the statements in the Declarations, **Application** and any supplemental materials are true, accurate and complete; (b) those statements are based upon representations made to us by the **Insured**; and (c) we have issued this Policy in reliance upon the **Insured's** representations. This Policy is void in any case of material misrepresentation, concealment or fraud by the **Insured** as it relates to this insurance.
9. **Action Against Us**: No action shall lie against us unless, as an express condition precedent thereto, there has been full compliance with all terms, conditions, and covenants of this Policy. No person or organization shall have any right under this Policy to join us as a party to any action against I**nsureds** to determine the **Insured's** liability, nor shall we be impleaded by the **Insureds** or their legal representatives.
10. **Mandatory Bilateral Binding Arbitration**: We and the **Insureds** agree that any and all disputes, controversies, or claims arising out of or relating to this Policy or its breach, termination, interpretation, or invalidity, shall first be negotiated in a non-binding mediation. Sixty calendar days following the declaration of a mediation impasse, the dispute may be submitted to final and binding arbitration pursuant to such rules and procedures as the parties may agree. If the parties cannot agree, the arbitration shall be administered by JAMS in accordance with its then prevailing Streamlined Arbitration Rules. In the event of arbitration, whether administered by the rules and procedures the parties have agreed, or if the parties cannot agree, as administered by JAMS, the panel shall consist of one arbitrator selected by JAMS, and the arbitrator shall not have the right to award punitive, exemplary, bad faith, or extra-contractual damages. In any arbitration, each party will bear its own legal fees and expenses. Judgment on any award rendered by the arbitrator may be entered in any court having jurisdiction thereof. We and the **Insureds** agree to waive their right to have any dispute adjudicated in a court of law and agree that final binding arbitration is the sole adjudicatory remedy of any disputes, controversies, or claims arising out of or relating to the Policy. We and the **Insureds** agree that any mediation or arbitration will take place in the state indicated in Item 1 of the Declarations, and will be governed by the substantive laws of the state indicated in Item 1 of the Declarations.

    We and all **Insureds** knowingly agree that this provision eliminates the ability to have such disputes adjudicated in a public state or federal court. We and all **Insureds** further agree that, in the event a motion to compel arbitration is necessitated by one party's

refusal to adhere to this provision, and if such a motion to compel arbitration is successful, the unsuccessful party shall reimburse and indemnify the successful party for the fees and costs associated with seeking the enforcement of this section.

This Section only applies to the extent not prohibited by the law pursuant to which this Policy is interpreted.

11. **Named Insured Provisions:** The **Named Insured** specified in the Declarations is authorized to act on behalf of all **Insureds** with respect to giving and receiving notice of cancellation or nonrenewal, paying premiums and receiving any return premiums, and accepting endorsements to this Policy.
12. **Transfer of Rights of Recovery (Subrogation):** If the **Insured** has rights to recover all or part of any payment we have made under this Policy, those rights are transferred to us. The **Insured** must do nothing after a loss to impair those rights and must help us execute any papers and take any reasonable action necessary to secure our rights.
13. **Changes:** Notice to any agent or knowledge possessed by any agent or other person acting on our behalf shall not effect a waiver or change in any part of this Policy or stop us from asserting any right under the terms of this Policy. The provisions of this Policy shall not be waived, changed or modified, except by a written endorsement issued to form a part of this Policy.
14. **Cancellation and Nonrenewal**
    1. **Cancellation**
        1. We may cancel this Policy:
            1. For nonpayment of premium by mailing or delivering written notice of cancellation to the first **Named Insured** at the mailing address shown in the Declarations at least 10 days before the effective date of cancellation.
            2. For any other reason permitted by applicable law by mailing or delivering written notice of cancellation to the first **Named Insured** at least 30 days before the effective date of cancellation.

        The mailing of notice shall be sufficient proof of notice. Notice to the first **Named Insured** shall be notice to all **Insureds**.

        If we cancel, earned premium shall be computed pro rata unless a different calculation is required by law. If you cancel, earned premium shall be computed at the short-rate basis unless a different calculation is required by law.

        2. You may cancel this Policy at any time by mailing written notice to us stating when, thereafter, such cancellation shall be effective. Proof of mailing of such notice shall be sufficient proof of notice. Delivery of such written notice shall be equivalent to mailing. The effective date and hour of cancellation as stated in the notice shall become the end of the **Policy Period.**

If you cancel this Policy, we will return 90% of the unearned pro rata per diem premium to the **Named Insured** subject to a minimum retained earned premium of twenty-five percent of the total premium.

2. **Nonrenewal**

   If we elect not to renew this Policy, we will mail or deliver written notice of nonrenewal to the **Named Insured** at least 30 days before the expiration date, or any longer period required by law. The mailing of notice shall be sufficient proof of notice.

15. **Assessability**: This Policy is non-assessable.
16. **Titles of Paragraphs:** The titles or headings of sections, provisions, or paragraphs of this Policy are intended for reference only and are not to be considered in interpreting this insurance contract.
17. **Coordination of Insuring Agreement:** In the event that any **Demand** s the subject of coverage under more than one Insuring Agreement, the largest applicable **Limit of Liability**, and its corresponding Deductible, shall be applied to the entire **Demand** Under no circumstances will more than one **Limit of Liability** or more than one Insuring Agreement be available to any **Demand**.
18. **Non-Stacking of Limits:** If this Policy and any other insurance policy, which the we or any affiliated or related ccompany issued to any **Insured,** applies to the same **Demand** or **Occurrence:**
    1. the **Limit of Liability** of this Policy shall be reduced to equal the same proportion of the **Limit of Liability** shown in the Declarations that the **Limit of Liability** shown in the Declarations under this Policy bears to the total limits of liability of all such policies, and;
    2. the maximum aggregate amount payable under all such policies shall not exceed the limit of liability of the single policy which reflects the largest limit of liability.

    Nothing contained in this Section shall be construed to increase the **Limit of Liability** available under this Policy.

    This section does not apply to any policy issued by us or any affiliated company specifically identified as excess insurance over this Policy.

19. **Entire Agreement:** By acceptance of this Policy, the **Insured** and the Insurer agree that this Policy (including the Declarations, **Application**, and any endorsements or schedules attached hereto) constitutes the entire agreement between the parties pertaining to the insurance provided hereunder. No agent or representative of the Insurer has authority to make any changes to this Policy unless expressly authorized by the Insurer.